

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable John Conley
Judge of the Superior Court
County of Orange
P.O. Box 1994
Santa Ana, CA 92702-1994

Re: Tellez, Irvin
CDC No.: AY4749
Case No.: 13CF2980
Date of Sentence: 11/20/2015

Dear Honorable John Conley:

The purpose of this letter is to provide the court with authority to resentence Irvin Tellez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Tellez was sentenced in 2015, and was convicted of section 245, subdivision (b), Assault with semiautomatic firearm. The trial court sentenced inmate Tellez on 11/20/2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Tellez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Tellez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, consisting of stylized cursive letters.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Charles Margines, Orange County Presiding Judge
Orange District Attorney
Private Attorney

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Orange		FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF ORANGE CENTRAL JUSTICE CENTER NOV 25 2015 ALAN CARLSON, Clerk of the Court JOSE BOCK DEPUTY			
PEOPLE OF THE STATE OF CALIFORNIA vs	DOB: 12-29-1987			13CF2980	-A
DEFENDANT: Tellez, Irvin					-B
AKA: Lil Speedy, ; Lil Speedy, ; Speedy, ; Speedy, ; Tellez, Irving ; Tellez,					-C
CII NO.: A27504577			-D		
BOOKING NO.: 2786443	☐ NOT PRESENT				
FELONY ABSTRACT OF JUDGEMENT		☐ AMENDED ABSTRACT			
☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT					
DATE OF HEARING 11/20/2015	DEPT. NO. C30	JUDGE John Conley			
CLERK Laura Hoyle	REPORTER Heidi Germain	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE Jim Mendelson	COUNSEL FOR DEFENDANT Martin J. Heneghan, Retained Attorney ☒ APPOINTED				

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
0 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME CMMD	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L,M,U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS	MOS.
2A	PC	664(a)-PC187(a)	Attempted murder	13	09/29/2015	X			U			X			X	X	09	00
3A	PC	245(b)	Assault with semiautomatic firearm	13	09/29/2015	X			M		X				X		02	00
4A	PC	186.22(a)	Participate in criminal street gang a	13	09/29/2015	X			M	X				X	X	X	(00)	(00)

Added to ISL term.

2. See MO. found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
2A	12022.53(d) PC	(25Y00M)	12022.7(a) PC	S	186.22(b)(1)(C) PC	10Y00M			10 0
3A	12022.5(a)(d) PC	01Y04M	12022.7(a) PC	01Y00M	186.22(b)(1)(C) PC	03Y04M			5 8

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per PC 1170(h)(1) or (2)

☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement

☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)

☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 00 00

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 26 08

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.

DEFENDANT: Tellez, Irvin

13CF2980

-A

-B

-C

-D

9 FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 13, below. ☐ * Victim name(s), in probation officer's report.

c. Fine(s):

Case A: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$ _____ per PC 1465.8. e. Conviction Assessment: \$ _____ per GC 70373. f. Other: \$ _____ per (specify): _____

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify) **DNA PC 296**

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): Penal Code 186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: _____ Suspended: _____ Served forthwith: _____

13. Other orders (specify): Please see Indeterminate Other Orders.

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT		
A	0	0	0	☐	2933
				☐	2933.1
				☐	4019
B				☐	2933
				☐	2933.1
				☐	4019
C				☐	2933
				☐	2933.1
				☐	4019
D				☐	2933
				☐	2933.1
				☐	4019
Date Sentence Pronounced		Time Served in State Institution			
11/20/2015		☐ DMH ☐ CDC ☐ CRC			

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c

Defendant's race/national origin: Hispanic

15. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify): _____

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ other (specify): _____

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

J. BOC

DATE

NOV 25, 2015



ABSTRACT OF JUDGMENT - PRISON COMMITMENT - INDETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-292 ATTACHED)

DNA TAKEN

CR-292

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Orange		FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF ORANGE CENTRAL JUSTICE CENTER NOV 25 2015 ALAN CARLSON, Clerk of the Court BY: JOSE BOCAS		
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: Tellez, Irving	DOB: 12-29-87			13CF2980
AKA: Lil Speedy, ; Lil Speedy, ; Speedy, ; Speedy, ; Tellez, Irving ; Tellez,				-B
CII# A27504577 BOOKING# 2786443 12/02/15	☐ NOT PRESENT			-C
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGEMENT		☐ AMENDED ABSTRACT	-D	
DATE OF HEARING 11-20-15	DEPT. NO. C30	JUDGE John Conley		
CLERK Laura Hoyle	REPORTER Heldi Germain	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING		
COUNSEL FOR PEOPLE Jim Mendelson		COUNSEL FOR DEFENDANT ☐ APPTD Martin J. Heneghan, Retained Attorney		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

0 (number of pages attached)

Additional counts are listed on attachment

0

(number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			CONCURRENT	CONSECUTIVE	654 STAY
						JURY	COURT	PLEA			
1A	PC	187(a)	Murder - first degree *	13	09/29/15	X					

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL
1A	12022.53(d) PC	25Y00M							25 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL

Defendant was sentenced to State Prison for an INDETERMINATE TERM as follows:

4. ☐ LIFE WITHOUT POSSIBILITY OF PAROLE on counts _____
5. ☐ LIFE WITH POSSIBILITY OF PAROLE on counts _____
6. a. ☐ 15 years to Life on counts _____ c. ☐ _____ years to Life on counts _____
- b. ☒ 25 years to Life on counts **1** d. ☐ _____ years to Life on counts _____
- PLUS enhancement time shown above.
7. ☒ Additional determinate term (see CR-290).
8. ☐ Defendant was sentenced pursuant to ☐ PC 667(b)-(i) or PC 1170.12 ☐ PC 667.61 ☐ PC 667.7 ☐ other (specify): _____

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for indeterminate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Tellez, Irvin			
13CF2980	-A	-B	-C
			-D

9 FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 280.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 280.00 per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case B: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ 5,035.99 ☐ Amount to be determined to ☐ Victim(s)* ☒ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 12, below.

☐ * Victim name(s), in probation officer's report.

c. Fine(s):

Case A: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ 40.00 per PC 1465.8.

e. Criminal Conviction Assessment: \$ 30.00 per GC 70373.

10. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify) **DNA PC 296**

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): **Penal Code 186.30**

12. Other orders (specify): As to count(s) 4, prison sentence stayed pursuant to Penal Code 654. Court(s) 5- DISMISSED- Motion of People. The defendant's total state prison sentence is a determinate sentence of 26 years, 8 months, which is to be served consecutively to the defendant's indeterminate sentence of 75 years to Life. The Court orders the defendant to pay restitution in the amount of \$5,035.99 payable to Victim Compensation & Government Claims Board. Court orders all fees payable through the Department of Corrections.

13. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c

Defendant's race/national origin: **Hispanic**

15. CREDIT FOR
TIME SERVED

14. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	0	0	0 ☐ 2933 ☐ 2933.1 ☐ 4019
B			☐ 2933 ☐ 2933.1 ☐ 4019
C			☐ 2933 ☐ 2933.1 ☐ 4019
D			☐ 2933 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced 11/20/2015		Time Served in State Institution ☐ DMH ☐ CDC ☐ CRC	

16. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

I hereby certify the foregoing to be a correct and true copy of the judgment made in this action.

DEPUTY'S SIGNATURE **J. BOC** DATE **NOV 25, 2015**